

Land (Survey and Measurement) Act, 1963

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Land (Measurement and Inspection) Act, 2019

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Amending Acts

1. Land (Measurement and Inspection) (First Amendment) Act, 2024 2024.7.2
2. Land (Measurement and Inspection) (Second Amendment) Act, 2029 2029.6.5
3. Land (Measurement and Inspection) (Third Amendment) Act, 2033 2033.7.4
4. Land (Measurement and Inspection) (Fourth Amendment) Act, 2035 2035.5.21
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6. Land (Measurement and Inspection) (Sixth Amendment) Act, 2046 2046.7.11
7. Administration of Justice Act, 2048 2048.2.16
8. Land (Measurement and Inspection) (Seventh Amendment) Act, 2049 2049.6.28
9. Land (Measurement and Inspection) (Eighth Amendment) Act, 2056 2057.3.7

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10. Republic Strengthening and Some Nepal Laws Amendment Act, 2066 2066.10.7
11. Some Nepal Acts Amendment Act, 2072 2072.11.13
12. Some Laws Amendment, Integration, Consolidation and Repeal Act, 2074 2074.6.30

Act No. 51 of the year 2019

An Act Made to Provide for the Measurement and Inspection of Land

Preamble: Whereas it is desirable to make provision for the measurement and inspection of land and for determining the classification of land in order to maintain mutual relations among the people of various classes, castes or regions of Nepal Omitted by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066. and generally for the convenience of the citizens of Nepal Omitted by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066.;

This Act is hereby made by His Majesty King Mahendra Bir Bikram Shah Dev in accordance with Article 93 of the Constitution of Nepal. 1. Short Title, Extent and Commencement: (1) This Act may be called the ?Land (Measurement and Inspection) Act, 2019?.

(2) This Act shall extend to the whole of Nepal Omitted by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066..

(3) This Act shall come into force immediately. 2. Definitions: Unless the subject or context otherwise requires, in this Act:

(a) "Land" means all kinds of land, including land with houses, gardens, orchards, trees, factories, ponds, tanks, etc. Added by the Sixth Amendment.(a1) "Measurement and inspection" means the work of measuring or re-measuring and inspecting land and collecting data related to the landowner and tenant, preparing maps of land, determining the area, classifying the type, or registering the land in the cadastral record based on maps or records, and such term also includes aerial survey for survey, establishing control point stations, and conducting topographic survey at various scales and publishing maps. Added by the Sixth Amendment.(a2) "Registration record" means the land ownership registration record prepared based on the map and cadastral record prepared after the measurement and inspection of land, clearly showing the landowner, tenant, plot number of land, area, and type.

Added by the Seventh Amendment.(a3) "Boundary" means the boundary line defining the border between two separate pieces of land. Added by the Seventh Amendment.(a4) "Plot" means a piece of land surrounded by boundaries on all four sides and having uniformity of right, possession, and type at every location. Amended by the Second Amendment.(b) "Landowner" means a person having the title right to land according to the prevailing Nepalese law. Amended by the Second Amendment.(c) "Tenant" means a person who is entitled to cultivate the land of another landowner under some condition and who cultivates that land with his or her own labor or the labor of his or her family. Amended by the Second Amendment.(d) "Patwari" means all persons who maintain records of land or house tax and collect land revenue or other dues accordingly. Amended by the Some Nepal Laws Amendment, Integration, Consolidation and Repeal Act, 2074.(e) "Government land" means the following land under the right, ownership, control or authority of the Government of Nepal: (1) Government houses, buildings or land, (2) Roads, paths or railways, (3) Forests, jungles or trees and bushes in forests or jungles, (4) Rivers, streams, lakes, ponds and their banks, (5) Canals, irrigation channels or public fallow land, (6) Minerals or mineral substances, (7) Mountains, cliffs, rocks, slopes, gravelly land, public gardens, or (8) Other land except public, community, trust (Guthi) or private land registered in the name of any individual. Amended by the Some Nepal Laws Amendment, Integration, Consolidation and Repeal Act, 2074.(f) "Public land" means the following land existing for public purpose: (1) Houses, land, drains or roads existing from time immemorial, (2) Wells, water spouts, water ghats, stepwells, ponds and their banks, (3) Land with passages for cattle, pasture land, alpine pastures, cremation sites, gravesites, burning ghats, Samadhi sites, cemeteries, (4) Land with rest houses (Pati), Pauwa, Devals, religious worship sites, monuments, monasteries, temples, Chaityas, Gumbas, Stupas, mosques, Idgahs, tombs, churches, squares (Chowks), platforms (Dabalis), resting places (Chautaris) or such land, (5) Land with places for fairs, festivals, public recreation or sports, or (6) Other land designated by the Government of Nepal as public land by publishing a notice in the Nepal Gazette.

Added by the Some Nepal Laws Amendment, Integration, Consolidation and Repeal Act, 2074.(f1) "Community land" means land kept by a community for its own purpose, or any structure built on such land, or other land under the ownership of the community.

(g) "Prescribed" or "as prescribed" means prescribed or as prescribed by the rules made under this Act. 3. Power to Measure and Inspect Land: (1) Amended by the Eighth Amendment.The Government of Nepal may issue an order to measure and inspect land in the whole or any part of Nepal Omitted by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066..

(2) The work under sub-section (1) may be done by the prescribed officer.

(3) Amended by the Second Amendment.For the purpose of measuring and inspecting land, stations may be established without control on any land, and any means of measurement may be used.

(4) After the order under sub-section (1) is issued, the Amended by the Eighth Amendment.Survey Officer (Napi Goswara) conducting the measurement and inspection shall give notice to the Amended by the Eighth Amendment.Land Revenue Office (Malpot Karyalaya) of the concerned district regarding the date of commencement of survey in the area to be measured and inspected and to provide the records required by him for such work.

(5) Added by the Seventh Amendment.If any mistake or error is found or brought to notice in the work done by the officer conducting the measurement and inspection, determining its area, and registering in the cadastral record, the Survey Officer (Napi Adhikrit) shall conduct necessary inquiry and, before distribution of the land ownership registration certificate under sub-section (1) of Section 8, cause the necessary correction to be made, and departmental action according to law shall be taken against the employee who deliberately makes such mistake or error.

(6) Added by the Second Amendment.The map and records prepared after measurement and inspection under sub-section (1) shall be updated by the prescribed officer as prescribed. 3A. General Duties of Jimidar Patwari: (1) Within the time limit prescribed by the concerned Amended by the Eighth Amendment.Land Revenue Office, the Jimidar Patwari shall prepare a detailed record showing the plot number, etc., of the land under his charge and submit it to the concerned Amended by the Eighth Amendment.Land Revenue Office.

(2) If survey, mapping, or establishment of control point stations is commenced in the concerned Amended by the Seventh Amendment.area of his Mauja, the Jimidar, Patwari or their representative shall remain present and assist the Amended by the Seventh Amendment.survey team whenever required from the start until the completion of such work. 3B.

Obligation to Provide Details: The Land Revenue Office and the concerned body shall provide the register and other documents required for measurement and inspection to the concerned Survey Office (Napi Goswara) or Survey Office before the commencement of measurement and inspection. 4. Method of Calculating Area of Land: (1) While determining the area of land that has been measured and inspected, the area shall be determined at the rate of one hectare equal to ten thousand square meters, and while preparing the registration record, the square meters along with hectares shall also be mentioned in such record. While mentioning square meters, up to two digits after the decimal point of square meters shall be kept. (2) For land measured and inspected before the commencement of this section and for which the registration record has already been established in Bigha or Ropani, the Land Revenue Office shall convert the area into hectares and square meters. 5. Amended by the Some Nepal Acts Amendment Act, 2072.Demarcation of Boundary of Rural Municipality or Municipality Area or Ward: While conducting measurement and inspection under this Act, before the survey of the Amended by the Some Nepal Acts Amendment Act, 2072.Rural Municipality or Municipality area or Ward to be surveyed, the boundary of such area or Ward shall be demarcated and surveyed. If a dispute arises regarding the boundary including the zone or district while demarcating the boundary, the boundary shall be demarcated according to the decision of the prescribed officer or committee. If it appears that the decision on the disputed boundary may take time, the survey work shall be continued and completed, keeping the registration of the plots up to the disputed boundary pending. Provided that, if not the whole district, Amended by the Some Nepal Acts Amendment Act, 2072.Rural Municipality or Municipality area or Ward, but only a part thereof is to be surveyed, it shall not be necessary to demarcate the boundary under this section. 5A. Omitted by the Eighth Amendment. 6. Giving Notice and Entering Land to Commence Work: (1) If it is necessary to establish a control point station on any land or to measure or inspect any land, notice shall be given at least fifteen days in advance to the landowner, tenant, adjacent landowners (Sandhiyars), concerned Jimidar, Patwari, and the Amended by the Some Nepal Acts Amendment Act,

2072.Rural Municipality or Municipality of the land where the control point station is to be established or the measurement and inspection is to be conducted.

Explanation: For the purpose of this sub-section, while giving notice to a landowner, tenant, adjacent landowner, Jimidar, and Patwari, it shall be sufficient to post a notice regarding this matter in the main places of frequent movement of many people in the area where the land for such control point station or measurement and inspection is located, or in the area where such landowner or tenant resides. Provided that, written notice shall be given to the Amended by the Some Nepal Acts Amendment Act, 2072.Rural Municipality or Municipality.

(2) While establishing a control point station on any land or measuring and inspecting land, the landowner or his representative, tenant, concerned Jimidar Patwari, adjacent landowner, and a representative of the concerned Amended by the Some Nepal Acts Amendment Act, 2072.Rural Municipality or Municipality shall be present. Provided that, if any landowner or his representative, tenant cultivating such land, or adjacent landowner does not appear within the time limit given by the notice under sub-section (1), the control point station may be established or survey or inspection may be conducted by keeping the Jimidar or his representative, or Patwari, or a representative of the local Amended by the Some Nepal Acts Amendment Act, 2072.Rural Municipality or Municipality of the area where such land is located.

(3) While establishing a control point station on any land or measuring and inspecting land, permanent or temporary landmarks, monuments, or beacons necessary for such work may be placed or buried, and bushes or branches of any tree may be cut to clear the line of sight.

(4) If a control point station is established on any land, the area of land used for such station shall also be deducted and mentioned in the record, and such fact shall be mentioned in the land ownership certificate (Jagga Dhani Praman Purja) of the landowner of such land and, if there is a tenant, also in the tenant's tiller's certificate (Jotaha ko Nissa). Explanation: "Control point station" means the area of land up to 1.25 meters on all four sides from the central landmark. Amended by the Third Amendment.(5) During the measurement and inspection of land, the landowner shall get his land registered by sending himself or through his representative the certificate of his right and possession. Except for fallow (Ailani) land, public land, Added by the Some Nepal Laws Amendment, Integration, Consolidation and Repeal Act, 2074.community land, Omitted by the Sixth Amendment and land within the prescribed forest boundary, Amended by the Fourth Amendment.landowners who have been occupying, cultivating, and enjoying land from time immemorial without any registered revenue (Benissa) shall also get such land registered.

If application for registration is made on the basis of such immemorial possession, the survey team shall, after specifying the Amended by the Some Nepal Acts Amendment Act, 2072.Rural Municipality or Municipality, Ward boundaries (Char Killah) and the name and address of the person applying for registration, post a notice in the main places of frequent movement of many people, including the tenant, adjacent landowners of such land, stating that anyone with an objection may file an objection with the survey team within twenty-one days of the notice, and also give written notice to the district and local Amended by the Some Nepal Acts Amendment Act, 2072.Rural Municipality or Municipality. If no objection is received, for land in other areas, the survey team shall, and for house and land with unregistered self-occupancy claim (Benissa ko Swabasi Charcha) in the Amended by the Sixth Amendment.municipality area, the Survey Office (Napi Goswara) shall register such land in the name of that person. If an objection is received, for land in other areas, the survey team shall, and for house and land with unregistered self-occupancy claim in the Amended by the Sixth Amendment.municipality area, the Survey Office (Napi Goswara) shall conduct a site

inspection (Sarjamin) and necessary inquiry and submit the matter with its opinion to the committee or officer designated by the Government of Nepal, and act according to the decision made. Added by the Fourth Amendment.(5A) While measuring and inspecting land, if ownership of a house or land without revenue is obtained on the basis of a household document and such land has been in continuous possession knowingly for at least fifteen years without any lawsuit or objection concerning such document in any court during that period, then even if such document is not registered, it shall be considered valid and such house or land shall be registered in the name of that possessing person, and the provisions of sub-section (7) shall not apply in this regard. Added by the Fourth Amendment.(5B) While measuring and inspecting a house or land having separate ownership on ground floor and upper floors, or on the same floor with separate ownership, such house or land shall be registered separately in the names of the house or landowners having separate ownership. Added by the Seventh Amendment.(5C) If a person claims in writing with evidence regarding land having private forest or bushes, registered and with revenue in his name and under his possession and use, the committee formed under Section 11B shall investigate and, according to its decision, register the land in the name of the concerned landowner.

Added by the Seventh Amendment.(5D) While measuring land in an area subject to re-measurement and inspection and registering it in the cadastral record, the existing map and registration record prepared from the previous measurement and inspection shall be referred to, matched, and the details thereof shall be mentioned in the evidence reference of the cadastral record.

(6) If a landowner or tenant fails to get the land registered or fails to send a representative during measurement and inspection under sub-section (5), a second notice shall be published in the concerned Amended by the Some Nepal Acts Amendment Act, 2072.Rural Municipality or Municipality within a period not exceeding fifteen days calling upon them to come for registration. If a landowner or tenant comes for registration within that period, and if the evidence of his right and possession matches, or in the case of land without registration or revenue from time immemorial, the landowner comes for registration on the basis of possession, the prescribed officer, after necessary inquiry, may register such land by imposing a fine of five rupees. Prohibitory phrase omitted by the Sixth Amendment

Amended by the Eighth Amendment.(6A) If a landowner who fails to appear or fails to send his representative even within the second time limit given under sub-section (6), the prescribed officer, in the presence of a representative of the Ward Committee, may register the land by matching the details available in the existing record. The landowner dissatisfied with such registration may file a complaint in a court within six months from the date of knowledge of such matter. Amended by the Third Amendment.(7) If, during the measurement and inspection of any land, a question of ownership (tero mero) arises between two or more persons, the prescribed officer shall examine the evidence of both parties and make a decision for temporary registration in the name of the party whose evidence appears stronger, pending final decision by a court, and give a copy thereof to the concerned parties. If the dissatisfied party does not file a complaint in court within thirty-five days against such decision, the decision shall be final, and registration shall be made in the name of the concerned person accordingly. If a complaint is filed, registration shall be made according to the final decision made by the court.

Omitted by the Eighth Amendment.(8) Added by the Sixth Amendment.(9) If, during re-measurement and inspection in a place where registration records have already been prepared after previous measurement and inspection under this Act, a question of ownership (tero mero) arises between two or more persons regarding land according to the existing registration records, the prescribed officer shall register the land by matching the existing registration records Amended by the Eighth Amendment.. Omitted by the Eighth Amendment.6A.

Added by the Eighth Amendment.6B. Concerning Registration of Omitted Land: (1) Notwithstanding anything written in the prevailing law, if any land is omitted from measurement and inspection, or measured and inspected but omitted from registration, the concerned person may submit an application to the prescribed officer with the necessary documents for the measurement and inspection of such land. (2) Upon receipt of an application under sub-section (1), the prescribed officer shall present such application to the prescribed committee and act according to the recommendation of such committee. (3) If no application is made under sub-section (1), sixty days after the date of distribution of the land ownership registration certificate of that area, such land shall be registered as government or public land and the record shall be established. (4) After the commencement of land measurement and inspection work in any area under sub-section (1), the Land Revenue Office shall send the case file related to the registration of omitted land to the concerned Survey Office (Napi Goswara) for necessary action. Added by the Eighth Amendment.6C. Registering Encroached Land: If any land originally being Amended by the Some Nepal Laws Amendment, Integration, Consolidation and Repeal Act, 2074.government, public or community land, known or measured and inspected, is encroached upon and occupied by someone through cultivation, development, or housing, even then, during measurement and inspection, such land shall be registered as government or public land. Added by the Eighth Amendment.6D.

Power to Rectify Registration Record: (1) Notwithstanding anything written in any other section of this Act, if the original road or canal has changed, or due to a person relinquishing his land and expanding the road or canal, the original road or canal has become unusable, causing a difference in the original registration record, and an application is made to the prescribed officer to correct it, the concerned Survey Office (Napi Goswara) shall present such application to the prescribed committee and, according to the recommendation of such committee, register the road or canal connected to the applicant's land in the name of the concerned person and rectify the record. (2) While preparing the registration record under this Act, if the name, surname, residence, age, three generations (Tin Puste), plot number, area, or type of any landowner is found to be incorrect, the concerned officer shall, after necessary inquiry, correct the registration record. Amended by the Sixth Amendment.7. If Land is Found to be More or Less: (1) Omitted by the Eighth Amendment. If, during measurement and inspection, the area is found to be less or more than the original area, the area of land shall be established in the name of the concerned landowner accordingly. Amended by the Eighth Amendment.(2) Amended by the Some Nepal Laws Amendment, Integration, Consolidation and Repeal Act, 2074. If any person's land is attached to government, public or community land, to separate such land, if there is any original registration record or document, on that basis, and if there is no such registration record or document, then by keeping the Ward Chairperson of the concerned Ward of the Amended by the Some Nepal Acts Amendment Act, 2072.Rural Municipality or Municipality and at least two of the nearest adjacent landowners, the measurement and inspection of land shall be conducted by determining the area based on the boundary recommended by them. While determining the area in this manner, if a person's land attached to government or public land is found to be more or less, the matter shall be submitted to the prescribed committee, and the measurement and inspection of land shall be conducted by determining the area as recommended by that committee. (3) Omitted by the Eighth Amendment. (4) After the registration record according to the area determined by measurement and inspection is deposited in the Land Revenue Office, the concerned landowner shall pay the land revenue or tax according to such registration record. Amended by the Sixth Amendment.8.

Right to Receive Registration Certificate: (1) After the completion of the measurement and inspection work and the preparation of the registration record, the prescribed officer shall prepare a Land Ownership Registration Certificate (Jagga Dhani Darta Praman Purja) as proof of ownership over the land according to

the registration record and give it to the concerned landowner or his representative. Added by the Sixth Amendment.(1A) If a house has separate ownership on the ground floor, upper floors, or on the same floor, separate Land Ownership Registration Certificates shall be prepared for such separately owned floors and given to the concerned landowner or his representative. (2) If a person does not receive the Land Ownership Registration Certificate under sub-section (1), or, after receiving the certificate, is dissatisfied with it, he may file a complaint with reasons to the prescribed officer within Added by the Seventh Amendment.the date of receipt of the certificate or Amended by the Eighth Amendment.within sixty days from the date of commencement of distribution of the certificate in that area. (3) Upon receiving a complaint under sub-section (2), the prescribed officer shall conduct necessary investigation and, by examining and matching the registration record prepared under sub-sections (5), (5A), (5B) Added by the Seventh Amendment.(5C), (5D) and (6) of Section 6, if a certificate is to be issued, shall issue it, or if correction is to be made, shall correct it and issue a new certificate. Provided that, if during the investigation of the complaint under this sub-section, it is not possible to issue or correct the certificate due to a question of right, possession or ownership (tero mero) arising under sub-section (7) of Section 6, the prescribed officer shall clearly state that the certificate can be issued or corrected only upon a decision on the matter by a court, and shall immediately give a copy to the complainant. (4) Amended by the Sixth Amendment.Registration of government, public or community land shall be as prescribed. Amended by the Eighth Amendment.8A. Registration Record Deemed Repealed upon Receipt of Details: The concerned Survey Office (Napi Goswara) or Survey Office shall, within one hundred twenty days from the date of distribution of the Land Ownership Registration Certificate, submit the details related to measurement and inspection to the concerned Land Revenue Office, and upon receipt of such details, the original registration record related to measurement and inspection shall be automatically repealed. 9. Recovery of Cost of Land Measurement and Inspection: The cost incurred in land measurement and inspection work for the purpose of recovery and collection by the Government of Nepal shall not be recovered from the public.

However, the full cost incurred in land measurement and inspection work done for a person's own purpose may be recovered from the concerned person. Added by the Second Amendment.9A. Compensation to be Given: If a control point station is established on any land, compensation shall be given to the landowner and tenant of such land as prescribed. 9B. General Responsibility of Landowner and Tenant: (1) If there is a tenant on the land where a control point station is established, the tenant, and if there is no tenant, the landowner, shall take all reasonable measures to protect such control point station. (2) Except in case of act of God (Daivi), if the control point station is damaged, moved, broken, or spoiled in any way, the person responsible under sub-section (1) shall, unless proven otherwise, be deemed to have damaged, moved, broken, or spoiled such control point station. Amended by the Eighth Amendment.10. Classification of Land Type: During measurement and inspection, the type of land shall be classified on the prescribed basis. Amended by the Eighth Amendment.10A. Land Revenue Office to Perform Duties of Jimidari Patwari: The work to be done by Jimidari Patwari under this Act shall be done by the Land Revenue Office after such post is abolished. Amended by the Third Amendment.11. Keeping Maps and Records: (1) During land measurement and inspection, the map of the land shall be prepared in the format prescribed by the Director General of the Amended by the Sixth Amendment.Survey Department. (2) During land measurement and inspection, the Amended by the Sixth Amendment.record of land shall be prepared and updated as prescribed. Prohibitory phrase omitted by the Seventh Amendment. 11A. Amended by the Third Amendment.11B. Government of Nepal May Form Committee: Amended by the Sixth Amendment.If it appears that any work or action has been done by a Survey Officer (Napi Adhikrit) or prescribed officer in contravention of this Act or the rules made under this Act, or if it appears that forest boundaries, government

land, public land, Added by the Some Nepal Laws Amendment, Integration, Consolidation and Repeal Act, 2074. community land or land under Guthi (trust) has been encroached upon and registered or caused to be registered, or if a general problem appears to have arisen in any area regarding rectification or measurement, mapping and registration, the Government of Nepal may form a committee to resolve such issues.

Added by the Sixth Amendment. The functions, duties and powers of the committee formed in this manner shall be Amended by the Sixth Amendment. specified at the time of formation of such committee. Added by the Eighth Amendment. 11C. Power to Conduct Measurement and Inspection for Consolidation or Integrated Development: The Government of Nepal may cause measurement and inspection to be conducted for the consolidation or integrated development of any private, Amended by the Some Nepal Laws Amendment, Integration, Consolidation and Repeal Act, 2074. government, public or community land. Added by the Eighth Amendment. 11D. Power to Conduct Aerial Survey, Publish Maps, etc. with Approval: Notwithstanding anything written in any other section of this Act, a prescribed officer or any other person may conduct aerial surveys, use control points established by the Government of Nepal, publish maps prepared by the Government of Nepal, or sell maps published abroad within Nepal Omitted by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066 , subject to fulfilling the prescribed conditions. Provided that, if a map published abroad conflicts with a map prepared by the Government of Nepal, such map shall not be sold within Nepal Omitted by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066

Added by the Eighth Amendment. 11E. Power to Grant License for Survey and Mapping: (1) The Government of Nepal may grant a license to any person or institution to carry out survey and mapping work as prescribed, subject to the measurement and inspection conducted under this Act.

(2) The fee applicable for granting a license under sub-section (1), the conditions to be complied with by the person or institution obtaining the license, and other related matters shall be as prescribed. 12. Punishment: Amended by the Second Amendment. (1) If anyone obstructs land measurement and inspection or establishment of control point stations by damaging boundary marks, inciting the public, creating a riot, or in any other manner, or causes such obstruction, the person obstructing or causing obstruction may be punished by the prescribed officer with a fine of up to fifty rupees for the first time, from fifty to one hundred rupees for the second time, and from one hundred to five hundred rupees for the third time, or imprisonment for six months, or both.

(2) If a person is found guilty of filing a false complaint alleging any kind of increase or decrease in land that has been measured and inspected under Section 8, the prescribed officer may fine such person up to NRs. 100.00.

Added by the Second Amendment. (3) A Jimidar who fails to prepare and submit the record within the time limit under Section 3A may be fined up to five hundred rupees, a Patwari up to three hundred rupees, and each Jimidar or Patwari who fails to appear or send a representative may be fined up to five rupees per day of absence by the Amended by the Eighth Amendment. chief of the Land Revenue Office. Added by the Second Amendment. (4) If anyone moves, breaks, damages, or causes any harm in any other way to a control point station without the approval of the Survey Department, the prescribed officer may recover the amount of loss and all expenses incurred in re-establishing or repairing the control point station and impose a fine of up to one thousand rupees. A person filing a false complaint in this regard may be ordered by the prescribed officer to pay the expenses incurred due to such false complaint and may be fined up to five hundred rupees. Added by the Eighth Amendment. (5) If anyone does any work or action without obtaining approval under Section 11D, the prescribed officer may fine him up to twenty thousand rupees, and all

materials including survey maps related to the work done without such approval shall be confiscated. Added by the Eighth Amendment.(6) If anyone does any other act contrary to this Act, the prescribed officer may fine him up to ten thousand rupees. Amended by the Second Amendment.13. Appeal: A person dissatisfied with the decision made under Section 12 by the prescribed officer or the Amended by the Eighth Amendment.chief of the Land Revenue Office may appeal to the concerned Amended by the Some Nepal Acts Amendment Act, 2072.High Court within thirty-five days from the date of such decision. 14. Power to Make Rules: The Government of Nepal may make rules for the purpose of implementing this Act. 15. Validation of Previous Actions: Any act or thing done before the commencement of this Act, which ought to have been done under this Act or the rules made under this Act, shall be deemed to have been done under this Act. 16. Repeal: For the purposes of this Act, sections 7, 8, 9 and 10 of the Muluki Ain (Country Code) regarding Land and Survey, and the Nepalese laws relating to land measurement and inspection shall be deemed to have been repealed.